

PART II.

2ND SCH.
—cont.

1. Session and Chapter.	2. Short Title.	3. How far continued.	4. Amending Acts.
(15) 10&11 Geo.5. c. 17.	The Increase of Rent and Mortgage In- terest (Restrictions) Act, 1920.	The whole Act.	13 & 14 Geo.5. c. 32. 14 & 15 Geo.5. c. 18. 15 & 16 Geo.5. c. 32. 20 & 21 Geo.5. cc. 39 & 40.

PART III.

(16) 8 & 9 Geo. 5. c. 34.	The Statutory Un- dertakings (Tem- porary Increase of Charges) Act, 1918.	So far as it relates to tramway un- dertakings.	10 & 11 Geo.5. c. 14.
(17) 12 & 13 Geo.5 c. 27.	The Canals (Conti- nuance of Charging Powers) Act, 1922.	The whole Act.	15 & 16 Geo.5. c. 2.

CHAPTER 3.

An Act to make provision for the imposition of duties of Customs on certain descriptions of fresh fruit, fresh vegetables, flowers, bulbs, plants and foliage, and for purposes connected therewith. [11th December 1931.]

Most gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom in Parliament assembled, with a view to reducing the importation into the United Kingdom of certain classes of fresh fruit, fresh vegetables and other horticultural products, the production of which in the United Kingdom can be

increased, or which are articles of luxury, have freely and voluntarily resolved to give and grant unto Your Majesty the duties for the imposition of which provision is hereinafter contained; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Power of
Minister to
apply Act.

1.—(1) If the Minister of Agriculture and Fisheries considers that it is desirable so to do, he may, with the concurrence of the Treasury, by order apply this Act to any articles of any of the descriptions set out in the Schedule to this Act.

(2) An order made under this section shall be laid before the Commons House of Parliament so soon as may be after it is made, and shall cease to have effect on the expiration of a period of twenty-eight days from the date upon which it is made unless at some time before the expiration of that period it has been approved by a resolution passed by that House:

Provided that in reckoning any such period of twenty-eight days as aforesaid no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which the Commons House is adjourned for more than four days.

(3) An order so made may be varied or revoked by a subsequent order made in the like manner and subject to the like provisions.

(4) A rule or regulation contained in an order made under this section shall not be deemed to be a statutory rule within the meaning of section one of the Rules Publication Act, 1893.

56 & 57 Vict.
c. 66.

Charge of
Customs
duties on
articles to
which this
Act applies.

2.—(1) Subject to the provisions of this Act, there shall, on the importation into the United Kingdom of articles of any description to which, by virtue of an order made under the last preceding section, this Act for the time being applies, be charged thereon such duties of Customs (subject to the limitation provided in subsection (2) of this section) as may be specified in the order.

(2) The duties to be charged as aforesaid—

- (a) may be charged by reference to value, weight, measurement or quantity, as may be provided in the order;
- (b) shall be charged for such periods and may be charged at such different rates for such different parts of any period, as may be so provided;
- (c) shall not exceed one hundred per cent. of the value of the articles, and, in the case of articles of any description to be charged to duty otherwise than by reference to value, the value thereof for the purpose of the foregoing limitation shall be taken to be the wholesale price, as determined by the Minister of Agriculture and Fisheries, of articles of that description prevailing at the corresponding period in the preceding year.

(3) No articles which are Empire products within the meaning of that expression as used in subsection (1) of section eight of the Finance Act, 1919, shall be chargeable with duty under this Act.

9 & 10 Geo. 5.
c. 32.

3.—(1) The value of any imported articles which are to be charged to duty by reference to value shall, for the purposes of this Act, be taken to be the price which an importer would give for the articles if they were delivered to him, freight and insurance paid, in bond at the port of importation, and duty shall be paid on that value as fixed by the Commissioners of Customs and Excise.

Basis of
value in case
of articles to
be charged
to duty on
value.

(2) The Commissioners of Customs and Excise may make regulations for the purpose of giving effect to the provisions of this section, and in particular for requiring any person concerned with the importation of articles into the United Kingdom to furnish to the Commissioners, in such form as they may require, such information as is, in their opinion, necessary for a proper valuation of the articles, and to produce any books of account or other documents of whatever nature relating to the purchase, importation, sale or re-sale of the articles by that person.

(3) If any person contravenes or fails to comply with any regulations made under this section, he shall in respect of each offence be liable to a Customs penalty of fifty pounds.

Determina-
tion of
disputes as
to value.

4. If, in ascertaining the proper rate of duty chargeable under this Act on any articles which are to be charged by reference to value, any dispute arises as to the value of the articles, the dispute shall be referred to the arbitration of a referee appointed by the Lord Chancellor, who shall not be an official of any Government department, and the decision of the referee with respect to the matter in dispute shall be final and conclusive, and sections thirty and thirty-one of the Customs Consolidation Act, 1876, shall apply as if the dispute were such a dispute as is referred to in the said section thirty, with the substitution of the application for a reference to a referee under this section for the action or suit mentioned in those sections.

39 & 40 Vict.
c. 36.

Exception
for transit
articles.

5. Subject to compliance with such conditions as to the security for the re-exportation of the articles as the Commissioners of Customs and Excise may impose, this Act shall not apply to articles imported for exportation after transit through the United Kingdom or by way of transshipment.

Short title,
construc-
tion and
extent.

6.—(1) This Act may be cited as the Horticultural Products (Emergency Customs Duties) Act, 1931.

(2) In this Act the expression “the United Kingdom” does not include the Isle of Man.

(3) This Act shall continue in force for a period of twelve months and no longer:

Provided that the expiry of this Act shall not affect the previous operation thereof or of any order made thereunder, or any obligation or liability previously incurred under this Act or any such order in respect of any duty of Customs, penalty, forfeiture, or punishment, or the taking of any steps, or the institution or carrying on of any proceedings, to determine the amount of any such duty or enforce any such obligation or liability.

SCHEDULE.

Section 1.

FRESH FRUITS.

Cherries.	Grapes (Hothouse).
Currants.	Plums.
Gooseberries.	Strawberries.

FRESH VEGETABLES.

Asparagus.	Lettuce.
Green Beans.	Mushrooms.
Broccoli and Cauliflowers.	Peas (Green).
Carrots.	Potatoes (New).
Chicory (Salad).	Tomatoes.
Cucumbers.	Turnips.
Endive.	

FLOWERS, &C.

Cut flowers.	Foliage.
Plants in flower.	Bulbs.
Flowers attached to bulbs.	Rose Trees.

CHAPTER 4.

An Act to give effect to certain resolutions passed
by Imperial Conferences held in the years 1926
and 1930. [11th December 1931.]

WHEREAS the delegates of His Majesty's Governments in the United Kingdom, the Dominion of Canada, the Commonwealth of Australia, the Dominion of New Zealand, the Union of South Africa, the Irish Free State and Newfoundland, at Imperial Conferences holden at Westminster in the years of our Lord nineteen hundred and twenty-six and nineteen hundred and thirty did concur in making the declarations and resolutions set forth in the Reports of the said Conferences:

And whereas it is meet and proper to set out by way of preamble to this Act that, inasmuch as the